

**IN THE COUNTY COURT OF THE TWELFTH JUDICIAL CIRCUIT
IN AND FOR MANATEE COUNTY, FLORIDA**

**COLONIAL MANOR MHC HOLDINGS, LLC,
d/b/a COLONIAL MOBILE MANOR,
Plaintiff(s),**

vs.

Case No. 2024 CC 001035

**DEBORAH ANN MOORE, DELMER WAYNE MOORE, and
ANY UNKNOWN PARTY(S) IN POSSESSION,
Defendant(s).**

ORDER OF REFERRAL TO COUNTY MEDIATION PROGRAM – EVICTION CASE

**THE DEFENDANT SHALL CONTINUE TO DEPOSIT ALL RENT, AS IT COMES DUE,
IN THE REGISTRY DURING THE PENDENCY OF THIS ACTION**

**FAILURE TO DEPOSIT MONIES IN THE REGISTRY OF THE COURT MAY RESULT IN A
DAFAULT AGAINST THE DEFENDANT, UPON REQUEST BY THE PLAINTIFF, AND WITHOUT
FURTHER NOTICE TO THE DEFENDANT OR HEARING**

THIS CAUSE is before the Court upon receipt of responsive pleading filed April 045, 2024 (letter dated March 29, 2024) by Defendant, Deborah A. Moore, pro se. Having reviewed the case file and noting the deposit made to the registry, the Court finds that this cause is appropriate for mediation. Pursuant to Section 44.102 Florida Statutes and Rule 1.700 Florida Rules of Civil Procedure, and the Court being fully advised of the premises, it is:

ORDERED AND ADJUDGED that this case is referred to the Twelfth Judicial Circuit's County Mediation Program:

1. Plaintiff or Plaintiff's attorney shall have the initial obligation of scheduling the mediation session. Within ten days from the date of this Order, Plaintiff or Plaintiff's counsel shall do the following:
 - a. Contact the County Mediation Program at (941)861-7833 (Sarasota & DeSoto Counties), (941)861-3708 (South County/Venice), or (941)749-3660 (Manatee County) to obtain possible dates for mediation.
 - b. Coordinate mediation date and time with the Defendant or Defendant's counsel.
 - c. Confirm mediation date and time with the County Mediation Program. Once scheduled, the County Mediation Program shall forward a Notice of Mediation to the parties.
 - d. If the parties fail within ten days of this Order to advise the County Mediation Program, it shall be the Order of this Court that the County Mediation Program shall

- immediately select the date and time for the session and accordingly notify the parties in writing.
- e. Unless otherwise ordered by the Court, the first mediation conference shall be held within 60 days of the date of the Order of Referral.
 - f. Any continuance of the session must be **TIMELY** requested by the parties to the County Mediation Program. Mediation shall be completed within 45 days of the first mediation conference unless extended by court order or by stipulation of the parties.
 - g. A party shall not unilaterally cancel any mediation session once it has been scheduled.
2. Rule 1.750 of the Florida Rules of Civil Procedure and section 44.108 of the Florida Statutes limit the amount in controversy referred to the court-connected mediation program to \$15,000. In cases where the amount in controversy exceeds \$15,000, the parties are required to utilize the services of a private mediator.
 3. The parties or attorneys must notify the County Mediation Program immediately if they wish to utilize the services of a private mediator in lieu of the County Mediation Program's Florida Supreme Court certified county mediator.
 4. Pursuant to Section 44.108, Florida Statutes, a fee has been established for all county civil cases, **excluding small claims and residential eviction cases**, when the court program is used.
 - a. Prior to the scheduled mediation date, the parties shall pay \$60.00 per party (per session) to the Clerk of the Circuit Court. The parties must provide the County Mediation Program with verification of payment prior to the scheduled mediation conference.
 - b. If a party fails to pay the fee prior to the mediation, the non-paying party will be asked to enter into an Agreement for Payment of Mediation Fees, requiring payment of the mediation fee within twenty (20) days, and providing for entry of a Judgment against the non-paying party, without notice or hearing, in the event that the non-paying party fails to comply with the agreement to pay the fees. The party shall pay the fee or obtain a certificate of indigence from the Clerk of Court. A Judgment may negatively affect credit and could lead to seizure of property by the State of Florida to satisfy the judgment.
 - c. If a non-paying party declines to enter into an Agreement for Payment of Mediation Fees, the Mediation Program shall report the non-payment immediately to the Court, and the Court shall issue an Order to Show Cause. Thereafter, a Judgment or other sanctions may be entered against the non-paying party.
 - d. Pursuant to Rule 1.750(b) of the Florida Rules of Civil Procedure, the parties are advised that they may object to mediation on the following grounds: financial hardship; the issue to be considered has been previously mediated or arbitrated between the same parties pursuant to Florida law; the issue presents a question of law only; the order violates Rule 1.710(b) or Rule 1.800 of the Florida Rules of Civil Procedure; or other good cause is shown.

5. The parties are advised that attendance at the mediation session is mandatory. Failure to appear may result in such sanctions as the court may deem appropriate, including dismissal or default, upon motion of the aggrieved party or the Court. See Florida Rules of Civil Procedure, 1.720(b).
6. Unless the Notice of Mediation indicates otherwise, the mediation shall be conducted virtually by ZOOM. Any objection to mediating via the ZOOM platform shall be filed with the Court and notice of the objection provided to all parties and the Mediation Department within 10 days of this Order. A properly noticed objection shall be cause for all parties to physically appear at the mediation conference in person, unless the parties agree otherwise.

WHEREFORE, the parties are ordered to present themselves for a mediation session, in accordance with the procedures set forth in this Order.

ORDERED AND ADJUDGED this 5th day of April 2024, in Chambers, Bradenton, Florida.



COUNTY COURT JUDGE

PERSONS WITH DISABILITIES: If you are a person with a disability who needs any accommodation in order to participate in this proceeding, you are entitled, at no cost to you, to the provision of certain assistance. Please contact the Sarasota County Jury Office, P.O. Box 3079, Sarasota, Florida 34230-3079, (941)861-8000; the Manatee County Jury Office, P.O. Box 25400, Bradenton, Florida 34206, (941)741-4062; the DeSoto County Clerk's Office, 115 East Oak Street, Arcadia, Florida 34266, (863)993-4876 at least seven (7) days before your scheduled court appearance, or immediately upon receiving this notification if the time before the scheduled appearance is less than seven (7) days; if you are hearing or voice impaired, call 711.

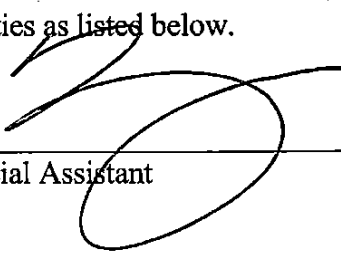
The Twelfth Judicial Circuit provides spoken language court interpreters to limited-English-proficient persons in accordance with Title VI of the Civil Rights Act of 1964, section 90.606, Florida Statutes, and Rule 2.560, Florida Rules of Judicial Administration. If you require the assistance of an interpreter, please submit your request to <https://jud12.flcourts.org/Programs/Court-Interpreters/Interpreter-Request>

or please call 941-749-3659. Please submit your request as early as possible, requests made with less than 5 business days' notice may not be accommodated.

El Duodécimo Circuito Judicial provee intérpretes judiciales de la lengua hablada a personas con dominio limitado del inglés de acuerdo con el Título VI de la Ley de Derechos Civiles de 1964, la sección 90.606, los Estatutos de la Florida y la Regla 2.560 de las Reglas de Administración Judicial de la Florida. Si requiere la ayuda de un intérprete, por favor envíe su solicitud a <https://jud12.flcourts.org/Programs/Court-Interpreters/Interpreter-Request> o llame al 941-749-3659. Por favor, envíe su solicitud lo antes posible, las solicitudes hechas con menos de 5 días hábiles no pueden ser garantizadas.

CERTIFICATE OF SERVICE

I HEREBY CERTIFY that a true and correct copy of the foregoing Order of Referral to County Mediation Program for Manatee County Eviction Case Number 2024 CC 001035 has been forwarded this 8 day of April 2024 to the parties as listed below.



Judicial Assistant

William C. Price, III, Esquire
WILLIAM C. PRICE, III, P.A.
522 12th Street West
Bradenton, FL 34205

Deborah Ann Moore,
Delmer Wayne Moore, and
Any Unknown Party(s) in Possession
900 9th Avenue East, Lot 181
Palmetto, FL 34221

cc: County Mediation Program